



## POLICE DEPARTMENT

September 4, 2024

Jonathan Darche  
Executive Director  
New York City Civilian Complaint Review Board  
100 Church Street, 10<sup>th</sup> Floor  
New York, NY 10007

Re: CCRB Case No. 202303338 (Incident Date: March 15, 2023) regarding Police Officer John Zaccara, Tax No. 955686 (DADS No. 2024-31120)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202303338, pertaining to Police Officer John Zaccara. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Police Officer Zaccara would be detrimental to the Police Department's disciplinary process.

After reviewing the facts and circumstances of the case, the Police Commissioner agrees that ejecting the individual from the subway system was proper and within NYPD Guidelines since Police Officer Zaccara was called to the location due to the individual harassing the booth operator.<sup>1</sup> However, during the interaction there was no interference in the individual's ability to record the events, as evinced by the video he provided in the investigation. Additionally, also captured on the individual's recording, is Police Officer Zaccara providing his identifying information, specifically his name, shield number and command, as required by the NYPD Administrative Guide.<sup>2</sup>

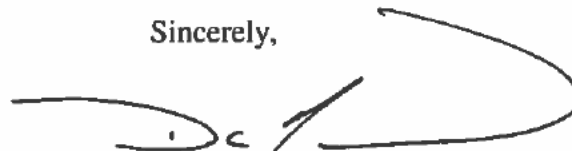
Therefore as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to issue Police Officer Zaccara a Schedule "A" Command Discipline with the forfeiture of one (1) vacation day for the remaining discourtesy

<sup>1</sup> See CCRB Investigative Recommendation pages 3-4 for further discussion on the individual being in violation of NYCT and MTA Rules of Conduct and subject to ejection and arrest.

<sup>2</sup> See NYPD Administrative Guide Procedure 304-11.

allegation, and the forfeiture of one (1) vacation day for the allegation that Police Officer Zacarra failed to record with his body-worn camera in a timely manner, for a combined total of two (2) vacation days. Furthermore, the Police Commissioner intends to impose no disciplinary action for the allegation of interfering with a recording device and failing to provide a business card.

Sincerely,

A handwritten signature in black ink, appearing to read 'Anthony S. Marino', with a large, sweeping loop at the end.

Anthony S. Marino  
Deputy Chief  
Commanding Officer  
Police Commissioner's Office



ERIC L. ADAMS  
MAYOR

**CIVILIAN COMPLAINT REVIEW BOARD**  
100 CHURCH STREET 10th FLOOR  
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235  
www.nyc.gov/ccrb



September 9, 2024

The Honorable Edward Caban  
Police Commissioner  
New York City Police Department  
One Police Plaza  
New York, NY 10038

Re: CCRB Case No. 202303338 (Incident Date: March 15, 2023) regarding Police Officer John Zaccara, Tax No. 955686 (DADS No. 2024-31120)

Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated September 4, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to dismiss the Charges and Specifications against PO Zaccara and issue a Schedule “A” Command Discipline. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department, I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that you analyzed the facts and circumstances of this matter and determined that to pursue Charges and Specifications against PO Zaccara would be detrimental to the Police Department’s disciplinary process. Instead, you intend to dismiss the charges and impose the penalty of a Schedule A Command Discipline with the forfeiture of two (2) days.

The CCRB respectfully disagrees with your assessment. Although PO Zaccara was called to the location, PO Zaccara incorrectly informed § 87(2)(b) several times that he was not allowed to record in the subway. Furthermore, PO Zaccara admitted that he misunderstood the rules governing filming in the MTA System. NYCT and MTA Rules of Conduct §1050.9(c) states “Photography, filming or video recording in any facility or conveyance is permitted except that ancillary equipment such as lights, reflectors or tripods may not be used.”

Since § 87(2)(b) was not in possession of ancillary equipment. Therefore, PO Zaccara did not have reason to interfere with § 87(2)(b) filming. PO Zaccara interfered with § 87(2)(b) recording by repeatedly asking him to leave without a lawful basis and ultimately ejecting § 87(2)(b). At 12:17 on PO Zaccara’s BWC, LT Montenegro, admits to § 87(2)(b) that he can lawfully be there but once asked to leave, he must comply which is incorrect. § 87(2)(b) was not engaging in conduct that warranted a lawful arrest. PO Zaccara’s misconduct was captured on BWC and is fully supported by the evidence and warrants the serving of Charges.

Furthermore, NYPD Administrative Guide 304-11 states that “Uniformed members of the service may offer business cards, as appropriate, and at their discretion, in situations that fall outside of the defined law enforcement activities. In addition, members are also to provide business



ERIC L. ADAMS  
MAYOR

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cards, as appropriate, at the request of members of the public.” When out of RTKA Business Cards, uniformed members of service must “Allow member of the public ample time to write down identification information.”

PO Zaccara was asked by § 87(2)(b) for his business card but did not receive one because PO Zaccara had none left. However, he did not make an attempt to write any of the information down nor did he allow ample time for § 87(2)(b) to write down the information as required by AG 304-11.

While the CCRB acknowledges you are the final arbiter of discipline, it respectfully disagrees with your assessment and requests that the NYPD serve Charges and Specifications upon PO Zaccara.

Respectfully submitted,

*Andre Applewhite*

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p.p., Andre Applewhite, Chief Prosecutor for  
Jonathan Darche, Executive Director  
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

September 10, 2024

Jonathan Darche  
Executive Director  
New York City Civilian Complaint Review Board  
100 Church Street, 10<sup>th</sup> Floor  
New York, NY 10007

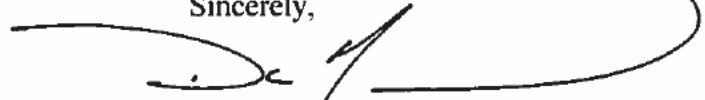
Re: CCRB Case No. 202303338 (Incident Date: March 15, 2023) regarding Police Officer John Zaccara, Tax No. 955686 (DADS No. 2024-31120)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated September 9, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer John Zaccara. Nevertheless, he maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Zaccara for the reasons expressed in my September 4, 2024 letter.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, directs the issuance of a Schedule "A" Command Discipline with the forfeiture of one (1) vacation day for the remaining discourtesy allegation, and the forfeiture of one (1) vacation day for the allegation that Police Officer Zaccarra failed to record with his body-worn camera in a timely manner, for a combined total of two (2) vacation days. Furthermore, the Police Commissioner directs to impose no disciplinary action for the allegation of interfering with a recording device and failing to provide a business card.

Sincerely,



Anthony S. Marino  
Deputy Chief  
Commanding Officer  
Police Commissioner's Office